

23NWCV01553 23NWCV01553

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-14

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Case Number: 23NWCV01553 Hearing Date: July 14, 2026 Dept: P

MONICA SOTO v. BMW OF NORTH

AMERICA, LLC, ET AL.

CASE NO.: 23NWCV01553

HEARING: 07/14/2026 @ 10:30 AM

#15

TENTATIVE ORDER

Defendant's motion for judgment on the pleadings is
GRANTED.

Moving party to give notice.

Defendant BMW of North America, LLC (Defendant) moves for
judgment on the pleadings.

Background

This is a lemon law action. Plaintiff Monica Soto (Plaintiff) filed a complaint against BMW of North America, LLC (Defendant) and Sterling Motors, LTD concerning alleged defects in a 2018 BMW 5 Series, VIN: WBAJA5C56JWA38529 (Subject Vehicle). The complaint alleges that "Defendant [] entered into a written warranty contract with Plaintiff(s) which included a Basic Warranty that included bumper-to-bumper coverage for defects in materials and workmanship..., a Drivetrain/Powertrain Warranty..., an California Emissions

Warranty..., and a Certified Pre-Owned Drivetrain Warranty. (Complaint, ¶ 8.) The complaint alleges two causes of action: (1) violation of Song-Beverly Act – breach of express warranty and (2) negligent repair.

On June 8, 2026, during a Final Status Conference, the Court specially set a Hearing Re: Further Briefing under Rodriguez 1793.2(d) for June 30, 2026. The Court stated: “Counsel are ordered to file further briefing regarding Rodriguez under California Civil Code § 1793.2(d), on or before June 22, 2026.” (Order, 6/8/26.)

On June 30, 2026, the Court considered the supplemental briefs. The Court renewed Defendant’s motion for judgment on the pleadings and scheduled it to be heard on today’s date. The Court stated that it takes judicial notice of the retail installment sales contract. (Order, 6/30/26.) The Court set a supplemental briefing schedule. (Order, 6/30/26.) The Court additionally vacated the trial date and set a trial setting conference for today’s date.

On July 8, 2026, Plaintiff filed a supplemental opposition. The next day, Defendant filed a supplemental reply.

Legal Standard

A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. (Code Civ. Proc., § 438, subd. (f).) Except as provided by statute, the rules governing demurrers apply. (Civic Partners Stockton, LLC v. Youssefi (2013) 218 Cal.App.4th 1005, 1012 “As when ruling on a demurrer, the court is required to consider only allegations contained within the complaint, which are presumed to be true, or facts of which it may take judicial notice.” (Tung v. Chicago Title Co. (2021) 63 Cal.App.5th 734, 758-59.) In ruling on a motion for judgment on the pleadings, “[a]ll allegations in the complaint and matters upon which judicial notice may be taken are assumed to be true.” (Rippon v. Bowen (2008) 160 Cal.App.4th 1308, 1313.) “A motion for judgment on the pleadings may be made at any time either prior to the trial or at the trial itself.” (Stoops v. Abbassi (2002) 100 Cal. App. 4th 644, 650.) “The court may upon its own motion grant a motion for judgment on the pleadings.” (Code Civ. Proc., § 438, subd. (b)(2).)

“If the motion is granted in favor of the plaintiff, it

shall be based on the grounds that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." (Civ. Proc. Code, § 438 subd. (c)(3)(A).)

Request for Judicial Notice

Defendant requests the Court take judicial notice of the following: Plaintiff's October 7, 2021, "Retail Installment Sale Contract" (Sale Contract) involving the purchase-sale of Plaintiff's vehicle that is the subject of his Complaint. As stated in the Court's Order on June 30, 2026, the Court takes judicial notice of the Sale Contract.

Discussion

Defendant moves for judgment on the pleadings. Defendant moves on the grounds that the Subject Vehicle does not qualify as a "new motor vehicle" under the Song-Beverly Consumer Warranty Act (Song-Beverly) because it was purchased as a Certified Pre-Owned (CPO) vehicle. Defendant argues that pursuant to *Rodriguez v. FCA US LLC* [Rodriguez] (2024) 17 Cal.5th 189, CPO vehicles do not qualify as "New Motor Vehicles" under the Song-Beverly Act.

In *Rodriguez*, the Supreme Court of California held "that the phrase "other motor vehicle sold with a manufacturer's new car warranty" — considered in the context of the surrounding text of section 1793.22, subdivision (e)(2) and in the broader context of the Song-Beverly Act's provisions distinguishing between new and used goods — means a vehicle for which a manufacturer's new car warranty is issued with the sale." (*Rodriguez*, supra, 17 Cal.5th at p. 206.) The Supreme Court specifically "conclude[d] that a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2) 's definition of 'new motor vehicle' unless the new car warranty was issued with the sale." (*Id.*, at p. 196.)

Plaintiff argues that Defendant's arguments ignore *Kiluk v. Mercedes-Benz USA, LLC* [Kiluk] (2019) 43 Cal.App.5th 334.

Kiluk involved the sale of a CPO vehicle which was

accompanied by an additional used vehicle warranty issued by the manufacturer in connection with the sale. (Id. at p. 336.) A jury found the defendant-manufacturer was liable under the SBA for breach of express and implied warranties. (Ibid.) The Court of Appeal affirmed this decision by concluding that “[a]lthough the Song-Beverly Act generally binds only distributors and retail sellers in the sale of used goods,...Mercedes Benz stepped into that role by issuing an express warranty on the sale of a used vehicle.” (Id., at p. 337.) The Court of Appeal reasoned:

Mercedes Benz partnered with a dealership to sell used vehicles directly to the public by offering an express warranty as part of the sales package, which is a crucial incentive for buyers like plaintiff. By partnering with the dealership, Mercedes Benz stepped into the role of a retailer and was subject to the obligations of a retailer under section 1795.5. That section provides that a retailer's obligations are the “same” as a manufacturer under section 1793.2.

(Id., at p. 340.) The Kiluk Court noted that the parties disputed whether the subject vehicle was a “new motor vehicle” under the Song-Beverly Act but determined that “even if the vehicle was not a “new motor vehicle” under Song-Beverly Act, Mercedes Benz was still liable under the used goods provisions of section 1795.5.” (Ibid.)

Plaintiff argues that Rodriguez leaves open “situations involving used cars sold with a new manufacturer’s warranty issued with that sale” and does not foreclose Song-Beverly Act protections “where the manufacturer has...issued a new warranty or played a substantial role in the sale of a used good.” (Rodriguez, *supra*, 17 Cal.5th at p. 203.) Plaintiff argues that Kiluk is consistent with Rodriguez as it is repeatedly cited in Rodriguez.

Based on the foregoing, Plaintiff argues that the allegations are sufficient to hold Defendant liable because Defendant “stepped into the role of a retailer.”

Here, Plaintiff’s reliance on Kiluk is not persuasive. In Kiluk, the Court of Appeal relied on specific facts to find that the defendant-manufacturer “stepped into the role of a retailer,” thus subjecting it to the obligations of a retailer under Civil Code section 1795.5. (Kiluk, *supra*, 43 Cal.App.5th at p. 340 [“Where the

manufacturer sells directly to the public...it takes on the role of a retailer.”].) Specifically, the Court of Appeal noted that “Mercedes Benz partnered with a dealership to sell used vehicles directly to the public by offering an express warranty as part of the sales package, which is a crucial incentive for buyers like plaintiff. By partnering with the dealership, Mercedes Benz stepped into the role of a retailer.” (Ibid.)

In contrast, here, the complaint does not allege that Defendant partnered with a dealership, directly offered express warranties, or directly sold to the public. The complaint alleges “Defendant...entered into a written warranty contract with Plaintiff(s) which included a... Certified Pre-Owned Drivetrain Warranty that covered defects in materials and workmanship for the earlier of an additional year or 100,000 miles.” (Complaint, ¶ 8.) Additionally, the complaint alleges Plaintiff “entered into a warranty contract with [Defendant] regarding [the Subject Vehicle] for a total price of \$64,914.48.” (Complaint, ¶ 16.) Neither the complaint nor Plaintiff presents facts alleging that Defendant took on the role of a retailer such that Kiluk would apply.

Next, as argued by Defendant, Rodriguez establishes that “the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ — considered in the context of the surrounding text of section 1793.22, subdivision (e)(2) and in the broader context of the Song-Beverly Act’s provisions distinguishing between new and used goods — means a vehicle for which a manufacturer’s new car warranty is issued with the sale.” (Rodriguez, *supra*, 17 Cal.5th at p. 206, emphasis added.)

First, as discussed above, the complaint does not allege that a new car warranty was issued with the sale. At best, the complaint alleges that Plaintiff entered into a warranty contract with Defendant “which included... a Certified Pre-Owned Drivetrain Warranty that covered defects in materials and workmanship for the earlier of an additional year or 100,000 miles.” (Complaint, ¶ 8.) Further, Defendant shows that the complaint does not allege that the CPO warranty was in effect, whether repairs occurred during its coverage period, or that any alleged nonconformity was covered under the CPO warranty.

Moreover, the California Supreme Court’s reasoning in Rodriguez indicates that the key distinction between new and used vehicles is the

issuance of the “new car warranty.” In *Rodriguez*, the Supreme Court notes that the statute expressly states that certain vehicles—“a dealer-owned vehicle and a ‘demonstrator’ or other motor vehicle sold with a manufacturer’s new car warranty”—qualify as “new motor vehicles.” (Civ. Code, 1793.22, subd. (e); *Rodriguez*, supra, 17 Cal.5th at p. 198.) The Court then reasons:

The meaning of the disputed phrase is informed by the specific mention of dealer-owned vehicles and demonstrators as examples of a “motor vehicle sold with a manufacturer’s new car warranty.” (*Ibid.*) As the Court of Appeal explained, “What makes these vehicles unique is that even though they aren’t technically new, manufacturers (or their dealer-representatives) treat them as such upon sale by providing the same type of manufacturer’s warranty that accompany new cars.” (*Rodriguez*, supra, 77 Cal.App.5th at p. 220, 292 Cal.Rptr.3d 382.) In other words, they are vehicles for which a new car warranty “was issued with the sale.” (*Id.* at p. 215, 292 Cal.Rptr.3d 382.)

(*Rodriguez*, supra, 17 Cal.5th at p. 198, citing *Rodriguez v. FCA US LLC* [*Rodriguez I*] (2022) 77 Cal.App.5th 209, 220, 292.)

Defendant argues that the CPO warranty is not a new car warranty. While *Rodriguez* does not expressly hold that CPO vehicles are used vehicles, *Rodriguez* states: “what we find most significant about the legislative history is that it makes no mention of used vehicles...One would assume that if the amendment proposed to expand manufacturers’ liability under the Act to a large class of used vehicles, such a change to the status quo would warrant mention if not discussion.” (*Rodriguez*, supra, 17 Cal.5th at p. 203.)

As discussed above, the pleadings do not allege that a new car warranty was issued with the sale. Moreover, the Sale Contract states that the car was purchased “used.” (RKN, Exh. A.)

The Court finds that Plaintiff does not plead facts that establish that Kiluk applies and thus that Defendant should be treated as the retailer. Moreover, the complaint does not allege the issuance of a new car warranty covering Plaintiff’s claims. Based on the complaint and matters judicially noticed, the Court finds that Plaintiff does not allege that a manufacturer’s new

car warranty was issued with the sale and thus that the Song-Beverly Act covers Plaintiff's claims.

Accordingly, Defendant's motion for judgment on the pleadings is GRANTED.